

In the District Court of Appeal
First District, Florida

Petitioner(s)

v.

Respondent(s)

Case No.: _____

Motion for Leave to Proceed in Forma
Pauperis/Affidavit of Indigency by Petitioner

Petitioner _____ respectfully moves this Court for an order permitting him/her to proceed in forma pauperis. Petitioner submits the following financial affidavit of indigency.

1. I have _____ dependents. (Include only whom you list on your U.S. Income tax return.)

Names and ages of dependents:

Are you married? _____

If yes, does your spouse work? _____

If yes, what is your spouse's annual income? \$_____

2. I have a net income* of \$ _____.

How often is your net income paid? _____ (For example: weekly, every two weeks, monthly, yearly, other.)

*Net income is your total income including salary, wages, bonuses, commissions, allowances, overtime, tips and similar payments, minus deductions required by law and other court-ordered payments such as child support.

3. I have other income totaling \$ _____. If you have other income, please mark the amount of other income from the most applicable source from the list below and write how often it is paid.

- Second job \$ _____ .

How often is it paid? _____.

- Social Security benefit
 - For you \$ _____
How often is it paid? _____.
 - For your child(ren) \$ _____
How often is it paid? _____.
- Unemployment compensation \$ _____
How often is it paid? _____.
- Union payments \$ _____
How often is it paid? _____.
- Retirement/pensions \$ _____
How often is it paid? _____.
- Trusts \$ _____
How often is it paid? _____.
- Veterans' benefits \$ _____
How often is it paid? _____.
- Workers compensation \$ _____
How often is it paid? _____.
- Income from absent family members \$ _____
How often is it paid? _____.
- Stocks/Bonds \$ _____
How often is it paid? _____.
- Rental income \$ _____
How often is it paid? _____.
- Dividends or interest \$ _____
How often is it paid? _____.
- Gifts \$ _____
How often is it received? _____.
- Other kinds of income not on the list \$ _____
How often is it paid? _____.

4. I have assets totaling \$ _____. If you have assets, please mark the amount of the assets by the most applicable type from the list below. For asset types marked with *, list any loans on those assets in paragraph 5 later in this form.

- Cash \$ _____
- Savings account \$ _____
- Bank account(s) \$ _____

- Stocks/bonds \$ _____
- Certificates of deposit or money market accounts \$ _____
- Homestead Real property* \$ _____
- Motor vehicle* \$ _____
- Boats* \$ _____
- Non-homestead real property/real estate* \$ _____
- Other tangible/intangible assets \$ _____

Do you expect to receive more assets in the future? _____

If you do, the asset is _____.

5. I have total liabilities and debts of \$ _____. List creditors and amount owed:

6. If you have been convicted of a crime and are incarcerated, you must complete the questions in this paragraph and attach the required copy of your inmate trust account.

My inmate number is: _____

List your monthly expenses:

Amount currently held in your inmate trust account \$ _____. **Attach photocopy of your trust account records for the preceding six (6) months or for whole time of incarceration, whichever period is shorter.**

I certify that I _____ (insert “have” or “have not”) been adjudicated indigent under section 57.081, 57.085 or 28 U.S.C. § 1915. If you “have” been adjudicated indigent and it occurred twice in the preceding three (3) years, you are required to list each suit, action, claim, proceeding, or appeal which you have intervened in any court or other adjudicatory forum in the proceeding five years. (This list is only required if you have been adjudicated indigent twice in the past three years.)

Attach extra sheet(s) if necessary.

I, _____, assert that I am presently unable to pay court costs and fees, and under penalty of perjury, I swear or affirm that all statements in this affidavit are true and complete.

7. I understand that I may be required to make payments for fees and costs to the clerk in accordance with § 57.082(5) or § 57.085, Florida Statutes, as provided by law. A person who knowingly provides false information to the clerk or the court in seeking a determination of indigent status under § 57.082, Florida Statutes, commits a misdemeanor of the first degree, punishable as provided in § 775.082 or § 775.083, Florida Statutes. **I attest that the information I have provided on this application is true and accurate to the best of my knowledge.**

Signature of applicant for indigent status: _____

Printed name of applicant: _____

Address of applicant: _____

Date signed: _____

CERTIFICATE OF SERVICE

I certify that a copy of this motion/affidavit has been provided to following opposing counsel/parties

by (explain if sent by mail/email/fax/delivery/correctional institutional official)

at the following address(es)

on the following date _____.

Filer's Signature: _____.